

25STCV08517 25STCV08517

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Case Number: 25STCV08517 Hearing Date: June 24, 2026 Dept: 732

Guadalupe Rodriguez v. The Salvation Army Southern CA Division,

et al.

Wednesday, June 24, 2026

CASE NUMBER: 25STCV08517

UNOPPOSED

Defendants The Salvation Army,

Raul Marin, Susie Vigil, Paula Del Pozo, Brittany Thomas, and Iona Hardwell's Demurrer

and Motion to strike Portions of the First Amended Complaint

Facts:

This is an action for sexual harassment and wrongful termination of employment.

The First Amended Complaint ("FAC") alleges as follows. Plaintiff Guadalupe

Rodriguez ("Plaintiff") was an employee of Defendants The Salvation Army

Southern CA Division, The Salvation Army, and The Salvation Army Adult

Rehabilitation Centers (ARC) Command USA Western Territory ("Salvation Army")

under the supervision of Defendant Raul Martin ("Martin"). (FAC

¶¶ 11–14a.) Martin sent Plaintiff inappropriate messages about her

appearance and her body, and gave her unwelcome hugs. (Complaint ¶¶ 14a–14d.)

When his advances were rebuffed, Martin began to micromanage her work and make

critical reports regarding her performance to management. (FAC ¶ 14e.)

Plaintiff in turn made complaints regarding Martin's behavior, after which

Martin terminated her employment. (FAC ¶¶ 14e–14g, 15.)

Procedural History: Plaintiff

filed the original Complaint on March 24, 2025, and filed the FAC on July 21,

2025, alleging seven causes of action:

1.

Sexual Harassment

2.

Breach of Oral Contract Not to Terminate

3.

Breach of Implied Contract Not to Terminate

4.

Negligent Hiring and Supervision

5.

Wrongful Termination

6.

Labor Code § 1102.5 Retaliation

7.

Intentional Infliction of Emotional Distress

On

October 27, 2025, Defendants The Salvation Army Southern CA Division and The

Salvation Army Adult Rehabilitation Centers (ARC) Command USA Western Territory

were dismissed from this action by stipulation of the parties.

Defendants

The Salvation Army,

Raul Marin, Susie Vigil, Paula Delgado, Brittany Thomas, and Iona Hardwell filed the present demurrer and motion to

strike on August 22, 2025. No opposition has been filed.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear

on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§

430.30, et seq.) In particular, as is

relevant here, a court should sustain a demurrer if a complaint does not allege

facts that are legally sufficient to constitute a cause of action. (See

id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311:

“We treat the demurrer as admitting all material facts properly pleaded, but

not contentions, deductions or conclusions of fact or law. . . . Further, we

give the complaint a reasonable interpretation, reading it as a whole and its

parts in their context.” (Id. at

p. 318; see also *Hahn v. Mirda*

(2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. Therefore, it lies only where the

defects appear on the face of the pleading or are judicially noticed.

[Citation.]”)

“In determining whether the complaint is sufficient as

against the demurrer ... if on consideration of all the facts stated it appears

the plaintiff is entitled to any relief at the hands of the court against the

defendants the complaint will be held good although the facts may not be

clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer

for uncertainty is strictly construed, even where a complaint is in some

respects uncertain, because ambiguities can be clarified under modern discovery

procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612,

616.) Such demurrers “are disfavored,

and are granted only if the pleading is so incomprehensible that a defendant

cannot reasonably respond.” (Mahan v.

Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if

the complaint, liberally construed, can state a cause of action under any

theory or if there is a reasonable possibility the defect can be cured by

amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at p.

1081.) The demurrer also may be sustained without leave to amend where the

nature of the defects and previous unsuccessful attempts to plead render it

probable plaintiff cannot state a cause of action. (Krawitz v. Rusch

(1989) 209 Cal.App.3d 957, 967.)

Defendants The

Salvation Army, Raul Martin, Susie Vigil, Paula Delpozo, Brittany Thomas, and

Iona Hardwell (“Defendants”) demurrer to each claim alleged in the First

Amended Complaint (“FAC”) of Plaintiff Guadalupe Rodriguez (“Plaintiff”).

Defendants argue that the first, fourth, sixth, and seventh causes of action

alleged against the individual Defendants Vigil, Delpozo,

Thomas, and Hardwell, are insufficient, as there are no allegations made

against them in the body of the complaint. (Demurrer at pp. 9–10, 17.)

Defendants argue that the first cause of action for harassment under Civil Code

§ 51.9 fails because Plaintiff does not allege a “business, service, or

professional relationship” with Defendants other than the employment

relationship. (Demurrer at pp. 10–11.) Defendants argue that insufficient facts

are alleged to support the existence of an oral or implied agreement not to

terminate except for good cause. (Demurrer at pp. 11–13.) Defendants make the

same point as to the absence of factual allegations supporting the

foreseeability of Defendant Martin’s conduct with respect to the fourth cause

of action for negligent hiring and supervision. (Demurrer at pp. 14–15.)

Defendants argue that Plaintiff’s fifth cause of action for wrongful

termination in violation of public policy fails to allege an underlying public

policy. (Demurrer at pp. 16–17.) Defendants argue that there are no facts

alleged to support a causal link between Plaintiff’s protected activity and her

termination. (Demurrer at pp. 17–18.) And Defendants finally argue that

Plaintiff alleges insufficient facts to establish outrageous conduct or severe

emotional distress to support the seventh cause of action for intentional

infliction of emotional distress (“IIED”). (Demurrer at pp. 18–20.)

1.

Individual Defendants

Defendants are correct that the allegations against

individual defendants Vigil, Delgado, Thomas, and Hardwell are insufficient to support any claim alleged against them as a matter of

law. The sum total of the allegations made against them in the FAC is their

inclusion in the caption, a boilerplate paragraph charging each defendant with

being the agent of the others, and a paragraph stating that Defendant Martin

reported Plaintiff's performance issues to these other individual defendants.

(FAC ¶ 14e.)

These allegations

are insufficient. "[T]he allegations in the body of the complaint, not the

caption, constitute the cause of action against the defendant." (Davaloo v.

State Farm Ins. Co. (2005) 135 Cal.App.4th 409, 418.) A "boilerplate

allegation [that] each defendant was the agent and employee of the others" does

not establish a cause of action against a defendant where no allegations are

made against them "in the body of the complaint." (Falahati v. Kondo (2005) 127 Cal.App.4th 823, 829.) Here,

Plaintiff alleges no conduct on the part of these individual defendants for

which liability may lie on any claim, as the body of the FAC discloses only

that Martin made reports to them, not that they participated in or directed,

authorized, or ratified any conduct forming a basis for any cause of action.

Accordingly, the

demurrer is SUSTAINED with leave to amend as to the first, fourth, sixth, and

seventh causes of action alleged against Defendants Vigil, Delgado, Thomas, and Hardwell.

2. Harassment

Defendants argue

that Plaintiff fails to state a claim for sexual harassment under Civil Code § 51.9 because that claim requires the harassment to take place in the context of a “business, service, or professional relationship between the plaintiff and defendant,” distinct from the employment context in which harassment claims may elsewhere arise. (Demurrer at pp. 10–11; Civ. Code § 51.9, subd. (a)(1).)

Defendants’ argument is persuasive. The harassment prohibited by Civil Code § 51.9 occurs in the context of a business or professional relationship, described to include a variety of such relationships including attorney, trustee, landlord, teacher, elected official, lobbyist, film director, or “substantially similar” relationships. (Civ. Code § 51.9, subd. (a)(1)(A)–(I).) The statute does not apply to employer/employee relationships, elsewhere governed with respect to harassment by the Fair Employment and Housing Act, and courts have described Civil Code § 51.9 as making the FEHA’s prohibition on sexual harassment actionable “outside the workplace.” (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1313.) Plaintiff here alleges only that the statute is satisfied because

Defendant Martin's supervisory relationship with her was a business relationship substantially similar to those listed in Civil Code § 51.9. (FAC ¶¶ 3–4.) But the supervisory relationship pleaded is merely an agency relationship with Plaintiff's employer, and as such is beyond the scope of Civil Code § 51.9. Plaintiff alleges no FEHA claim.

Accordingly, the demurrer is SUSTAINED with leave to amend as to the first cause of action for sexual harassment.

3. Contract Claims

Defendants argue that the second and third causes of action for breach of express and implied contract not to terminate without good cause fail to allege expressions of mutual assent or consideration supporting the agreement. (Demurrer at pp. 11–14.)

A breach of contract claim requires “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (D'Arrigo Bros. of California v. United Farmworkers of America (2014) 224 Cal.App.4th 790, 800.)

The second and third causes of action allege the required elements. It is alleged alternately that

Plaintiff had a contract, oral or implied, not to be terminated except for good cause with Defendant The Salvation Army, manifested by an oral agreement between Plaintiff and her supervisors or by oral assurances therefrom in conjunction with "the length of Rodriguez's employment with Defendants, Defendants' practice of terminating employment only for cause, and the industry standard for the business Defendants engaged in of terminating employment only for cause." (FAC ¶¶ 16, 20.) It is alleged that Plaintiff performed under the agreement by performing her job duties. (FAC ¶ 16.)

Defendant argues

that there are no manifestations of assent alleged, nor any consideration.

(Demurrer at pp. 11–12.) But Plaintiff alleges the requisite mutual assent through the existence of oral assurances by her supervisors and other conduct.

And Plaintiff need not allege consideration independent of her continued employment, as a contract not to terminate except for cause may be created "if either of two conditions exist: (1) the contract was supported by consideration independent of the services to be performed by the employee ...; or (2) the parties agreed, expressly or impliedly, that the employee could be terminated only for good cause." (Pugh v. See's Candies, Inc. (1988) 203 Cal.App.3d 743, 751.) Plaintiff alleges the latter of these conditions.

Accordingly, the

demurrer is OVERRULED as to the second and third causes of action.

4.

Negligent Supervision

"[I]n California, an employer can be held liable for

negligent hiring if he knows the employee is unfit, or has reason to believe

the employee is unfit or fails to use reasonable care to discover the

employee's unfitness before hiring him."

(Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th

828, 843.) "Liability results ... not because of the relation of the parties

but because the employer antecedently had reason to believe that an undue risk

of harm would exist because of the employment"" (J.W. v. Watchtower Bible

and Tract Society of New York, Inc. (2018) 29 Cal.App.5th 1142, 1164

[upholding allegations of negligent supervision "[b]ecause J.W. has alleged

that Watchtower had knowledge of the threat posed by Simental, she has

sufficiently pled facts from which Watchtower could be held legally responsible

for the molestation."].)

Defendants are correct that the FAC does not allege that

Plaintiff's employer at any point had reason to believe Defendant Martin's

employment posed a risk of harm. The FAC alleges merely that Defendants owed a

duty to adequately supervise and train their employees, and then states in

conclusory fashion that Defendants “breached these duties.” (FAC ¶¶ 25–26.)

This is insufficient.

The demurrer is therefore SUSTAINED with leave to amend as

to the fourth cause of action for negligent hiring and supervision.

5.

Wrongful Termination & Retaliation

To allege a claim for wrongful discharge in violation of

public policy, “the policy must be ‘(1) delineated in either constitutional or

statutory provisions; (2) ‘public’ in the sense that it ‘inures to the benefit

of the public’ rather than serving merely the interests of the individual; (3)

well established at the time of the discharge; and (4) substantial and

fundamental.” (Phillips v. St. Mary Regional Medical Center (2002) 96

Cal.App.4th 218, 226.)

Plaintiff here alleges that she was terminated based on her

sex and engagement in protected activity, in violation of the policies

underlying the Fair Employment and Housing Act (“FEHA”), the California

Constitution, and Labor Code § 1102.5. (FAC ¶ 28.) Defendant argues that these

policies are too broadly framed to support a claim for tortious discharge, but applicable

authority contradicts this argument. “ (See

Trop v. Sony Pictures Entertainment, Inc. (2005) 129 Cal.App.4th 1133, 1144

["FEHA provisions may provide the policy basis for a claim for wrongful

termination in violation of public policy."].)

Defendants' argument against the Labor Code § 1102.5 claim

echoes their argument with respect to the wrongful discharge claim. To make

such a retaliation claim, the employee must show "he engaged in protected

activity, his employer subjected him to an adverse employment action, and there

is a causal link between the two." (Hager v. County of Los Angeles

(2014) 228 Cal.App.4th 1538, 1540, disapproved on other grounds by Lawson v.

PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703.) Defendants here

argue that Plaintiff's allegation of protected activity is too broad, as she

merely alleges she complained of a FEHA violation. (Demurrer at p. 17; FAC ¶

35.) This argument does not take into account the facts alleged in the body of

the FAC, which disclose that these complaints were based on Defendant Martin's

"unfair treatment and harassment," and thus provide notice of the specific

nature of the complaints. (FAC ¶ 14e.)

Defendants further argue that the FAC fails to allege any

causal link between Plaintiff's termination and her protected activity

(Demurrer at p. 17), but this argument likewise takes ill account of the facts

alleged. Plaintiff alleges that Defendant Martin terminated her employment

after engaging in a pattern of harassment, followed by retaliatory conduct when

Plaintiff rebuffed his advances and complained to her supervisors. (FAC ¶¶

14–15.) The requisite causal link is alleged.

Accordingly, the demurrer is OVERRULED as to the fifth and

sixth causes of action for wrongful discharge and retaliation under Labor Code

§ 1102.5.

6.

IIED

“The elements of a cause of

action for IIED are as follows: (1) defendant engaged in extreme and outrageous

conduct (conduct so extreme as to exceed all bounds of decency in a civilized

community) with the intent to cause, or with reckless disregard to the

probability of causing, emotional distress; and (2) as a result, plaintiff

suffered extreme or severe emotional distress.” (Berry v. Frazier (2023)

90 Cal.App.5th 1258, 1273.) “Whether a defendant’s conduct can reasonably be found to be outrageous is a question

of law that must initially be determined by the court; if reasonable

persons may differ, it is for the jury to determine whether the conduct was, in fact, outrageous.” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534.)

Defendants argue that Plaintiff does not allege conduct

sufficiently outrageous to establish IIED liability. (Demurrer at pp. 18–20.)

However, reasonable triers of fact may differ as to the outrageousness of the

conduct alleged, which includes unwelcome sexual messages and comments by a

supervisor, an unwelcome hug, retaliatory employment actions including micromanaging, retaliatory performance critiques to upper management, and undermining the employee in front of clients, culminating in what is alleged to be a retaliatory discharge. (FAC ¶¶ 14–15.) Although Defendant argues that this conduct is not sufficiently severe or pervasive to amount to a harassment claim, such claims are not generally suitable for summary disposition. (See Gov. Code § 12923, subd. (g).) And although Defendants argue that personnel management actions, such as discharge, cannot form the basis for an IIED claim because they fall within the ambit of the worker's compensation bargain, courts have held otherwise where the personnel management actions at issue are alleged to violate FEHA. (See *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 100.)

However, Defendants are correct that Plaintiff does not allege the severe emotional distress required to state an IIED claim. The distress sustained must be “so severe that no reasonable man could be expected to endure it.” (*Pitman v. City of Oakland* (1988) 197 Cal.App.3d 1037, 1047 [finding insufficient the allegation that plaintiff suffered “shame, humiliation and embarrassment without further factual explanation”].) Plaintiff here has alleged only “psychological and emotional distress, humiliation, and mental and physical pain and anguish.” (FAC ¶¶ 12, 17, 42.) This is akin to allegations elsewhere

held insufficient against demurrer.

Accordingly, the demurrer is SUSTAINED with leave to amend,

as to the seventh cause of action for IIED.

I.

MOTION TO

STRIKE

Any

party, within the time allowed to respond to a pleading, may serve and file a

notice of motion to strike the whole or any part thereof. (Code Civ. Proc., §

435(b)(1)). The notice of motion to strike a portion of a pleading shall quote

in full the portions sought to be stricken except where the motion is to strike

an entire paragraph, cause of action, count or defense. (California Rules of

Court Rule 3.1322.)

The grounds for a motion to

strike shall appear on the face of the challenged pleading or form any matter

of which the court is required to take judicial notice. (Code Civ. Proc., §

437(a)). The court then may strike out any irrelevant, false, or improper

matter inserted in any pleading and strike out all or any part of any pleading

not drawn or filed in conformity with the laws of this state, a court rule, or

an order of the court. (Code Civ. Proc., § 436.) When the defect which

justifies striking a complaint is capable of cure, the court should allow leave

to amend. (*Perlman v. Municipal Court*

(1979) 99 Cal.App.3d 568, 575.)

Defendants argue that Plaintiff cannot allege a prayer for

punitive damages against Defendants, as a religious nonprofit and the agents

thereof, absent prior leave of court under Code of Civil Procedure § 425.14.

(Motion at pp. 3–4.)

No claim for punitive or exemplary damages against a

religious corporation or religious corporation sole shall be included in a

complaint or other pleading unless the court enters an order allowing an

amended pleading that includes a claim for punitive or exemplary damages to be

filed. The court may allow the filing of an amended pleading claiming punitive

or exemplary damages on a motion by the party seeking the amended pleading and

upon a finding, on the basis of the supporting and opposing affidavits presented,

that the plaintiff has established evidence which substantiates that plaintiff

will meet the clear and convincing standard of proof under Section 3294 of the

Civil Code.

(Code Civ. Proc., § 425.14, subd. (a).)

Defendants argue that the Salvation Army is

a religious nonprofit subject to the above provision, and that Plaintiff has

not sought advance leave of court to allege punitive damages. (Motion at pp.

3–4.) Plaintiff has filed no opposition to the motion.

Defendants have shown that punitive damages

are not properly pleaded against them under Code of Civil procedure § 425.14.

The motion to strike is therefore GRANTED without leave to amend.

Superior Court of California

County of Los Angeles

Department 732

GUADALUPE

RODRIGUEZ.,

Plaintiffs

v.

THE SALVATION ARMY SOUTHERN CA

DIVISION, et al.,

Defendants.

Case No.:

25STCV08517

Hearing Date: June 24, 2026

[TENTATIVE] RULING RE:

Defendants

The Salvation Army, Raul Marin, Susie Vigil, Paula Del Pozo, Brittany Thomas,

and Iona Hardwell's Demurrer and Motion to strike Portions of the First

Amended Complaint

Defendants The Salvation Army, Raul Martin, Susie Vigil, Paula Del Pozo,

Brittany Thomas, and Iona Hardwell's Demurrer and Motion to strike Portions of

the First Amended Complaint are SUSTAINED with leave to amend as to

all claims alleged against Defendants Vigil, Del Pozo, Thomas, and Hardwell. The

demurrer is further SUSTAINED with leave to amend as to the first, fourth, and

seventh causes of action for sexual harassment, negligent hiring and supervision, and

intentional infliction of emotional distress. The Demurrer is OVERRULED as to

the second, third, fifth and sixth causes of action for breaches of implied and

oral contracts not to terminate, wrongful termination and Labor Code § 1102.5 retaliation.

The motion to strike the prayer for punitive damages is GRANTED without leave

to amend. Any amended pleading shall be filed within 20 days of this order.

Defendants to give notice.

Dated: June 24, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court